

24TRCV00991 24TRCV00991

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-09-15

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Case Number: 24TRCV00991 Hearing Date: September 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

nichell morgan

;

Plaintiff,

vs.

laboratory corporation of
america

, et al.;

Defendants.

Case

No.:

24TRCV00991

Hearing

Date:

September
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

WALGREEN CO.'S MOTION FOR AN ORDER COMPELLING PLAINTIFF NICHELL MORGAN TO
COMPLETE HER DEPOSITION and PRODUCE DOCUMENTS

(2)

DEFENDANT WALGREEN CO.'S REQUEST FOR MONETARY
SANCTIONS

MOVING PARTY: Defendant, Walgreen Co.

RESPONDING

PARTY: No opposition.

(1)

Defendant

Walgreen Co.'s Motion for an Order Compelling Plaintiff Nichell Morgan to
Complete Her Deposition and Produce Documents is GRANTED pursuant to Code of
Civil Procedure section 2025.450, subdivision (a).

(2)

Defendant

Walgreen Co.'s Request for Monetary Sanctions is GRANTED pursuant to Code of
Civil Procedure sections 2023.030, 2030.030, and 2025.450.

The

Court considers the moving papers filed on July 27, 2026. To date, no opposition brief has been filed.

Factual

Background

On March 21, 2024, plaintiff Nichell Morgan ("Plaintiff") filed the Complaint against defendants Laboratory Corporation of America, Walgreen Co. ("Defendant"), DOE 1 (Store Manager), and DOES 2 through 50. The Complaint includes two causes of action for (1) General Negligence and (2) Premises Liability.

On March 27, 2025, Defendant served a deposition notice on Plaintiff, scheduling her deposition for April 29, 2025, and requesting the production of thirty-one documents. (Declaration of J. Adam Laufer ("Laufer Decl."), Exh. C.) On April 29, 2025, Plaintiff joined her virtual deposition using her cellphone while in a vehicle; however, she disconnected prior to the commencement of the deposition and did not return. (Laufer Decl., ¶ 8, Exh. C.)

On Junky 23, 2025, Plaintiff appeared for her scheduled deposition, but it was cut short due to technical difficulties at the court reporter's office. (Laufer Decl., ¶ 9, Exh. D.)

On November 26, 2025, Defendant served a deposition notice on Plaintiff, scheduling her deposition for December 11, 2025, and requesting the production of seven documents. (Laufer Decl., ¶ 10, Exh. E.) Plaintiff did not attend this deposition. (Laufer Decl., ¶ 10.)

On January 26, 2026, Defendant served a deposition notice on Plaintiff, scheduling her deposition for March 12, 2026, and requesting the production of seven documents. (Laufer Decl., ¶ 11, Exh. F.) Once again, Plaintiff failed to attend the deposition; however, her counsel was present and informed Defendant's counsel that the in-person deposition could not take place due to Plaintiff's relocation out of state. (Laufer Decl., ¶¶ 11-12.) This information was later found to be incorrect. (Laufer Decl., ¶ 13.)

On April 29, 2026, Defendant served another deposition notice on Plaintiff, scheduling her deposition for June 5, 2026, and requesting the production of thirty-one documents. (Laufer Decl., ¶ 11, Exh. F.) On that date, Plaintiff appeared remotely, was sworn in, and the deposition commenced. (Laufer

Decl., ¶ 4.) However, Plaintiff

encountered connectivity and technical issues, which necessitated a pause in the proceedings prior to the commencement of substantive questioning. (Laufer Decl., ¶ 4.) Before the deposition could be reconvened,

Plaintiff disconnected from the videoconference without prior notice or permission. (Laufer Decl., ¶ 5.) Plaintiff's counsel attempted to contact her to rejoin the session but was unable to reach her, as she did not return their calls. (Laufer Decl., ¶ 5.) Following her failure to return, Defendant's counsel requested that the court reporter resume the record and formally documented the events in the transcript.

(Laufer Decl., ¶ 6, Exh. B.)

On July 13, 2026, the Court granted Plaintiff's counsel's motion to be relieved as counsel.

On July 20, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff regarding the previously terminated deposition and sought new dates to schedule an in-person deposition. (Laufer

Decl., ¶ 16, Exh. G.) Defendant's

counsel requested that three new dates be provided by July 23, 2026, at 5:00 p.m. (Laufer Decl., ¶ 16, Exh. G.) Should Plaintiff fail to provide acceptable dates, Defendant indicated its intention to file a motion to compel and to request sanctions. (Laufer Decl., ¶ 16, Exh. G.) Plaintiff did not respond. (Laufer Decl., ¶ 16.)

LEGAL

STANDARDS

Code of Civil Procedure

section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

The motion must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).) “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020.)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may

also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a

monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code

Civ. Proc., § 2023.030, subd. (a).) “Misuses

of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery. ... (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made..”

(Code Civ. Proc., § 2023.010, subds. (d), (i).)

“The court may award sanctions

under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal.

Rules of Court, rule 3.1348(a).)

MEET

AND CONFER REQUIREMENT

Defendant

must meet and confer with Plaintiff before bringing this motion, either by contacting the deponents to inquire about the nonappearance or by following Code of Civil Procedure section 2016.040.

(Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040

states that a meet and confer declaration “shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the

merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative

strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter.' ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

The Court finds that Defendant made sufficient attempts to meet and confer regarding the deposition.

On March 27, 2025, Defendant served a deposition notice on Plaintiff, scheduling her deposition for April 29, 2025, and requesting the production of thirty-one documents. (Laufer Decl., Exh. C.) On April 29, 2025, Plaintiff joined her virtual deposition using her cellphone while in a vehicle; however, she disconnected prior to the commencement of the deposition and did not return. (Laufer Decl., ¶ 8, Exh. C.)

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Plaintiff disconnected from the videoconference without prior notice or permission. (Laufer Decl., ¶ 5.) Plaintiff's counsel attempted to contact her to rejoin the session but was unable to reach her, as she did not return their calls. (Laufer Decl., ¶ 5.) After she failed to return the calls, Defendant's counsel requested that the court reporter resume the record and formally document the events in the transcript. (Laufer Decl., ¶ 6, Exh. B.)

On July 20, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff regarding the previously terminated deposition and sought new dates to schedule an in-person deposition. (Laufer Decl., ¶ 16, Exh. G.) Defendant's counsel requested that three new dates be provided by July 23, 2026, at 5:00 p.m. (Laufer Decl., ¶ 16, Exh. G.) Should Plaintiff fail to provide acceptable dates, Defendant indicated its intention to file a motion to compel and to request sanctions. (Laufer Decl., ¶ 16, Exh. G.) Plaintiff did not respond. (Laufer Decl., ¶ 16.)

Consequently, the Court concludes that Defendant has adequately attempted to meet and confer regarding the deposition. Plaintiff appears to attend the deposition only to subsequently withdraw or provide an excuse for non-attendance. The Court finds it unnecessary for Defendant to undertake additional efforts to meet and confer under these circumstances, particularly in light of the absence of objections to the proposed dates or the documents requested in the deposition notice.

DISCUSSION

Defendant requests that the Court issue an order compelling Plaintiff to: (1) "appear for and complete her deposition within fourteen (14) days of this Court's ruling, or at other such time as the Court may order[.]" and (2) "produce the documents identified in Defendant's deposition notice at the continued deposition[.]" (Motion, pp. 6:12-16.)

Plaintiff has not proposed any alternative

dates for this deposition. (Laufer Decl., ¶ 16.) The information obtained during the deposition will enable Defendant to evaluate the "allegations, claims, and damages at issue." (Motion, p. 4:22.) Furthermore, Defendant contends that "[t]he requested documents concern Plaintiff's claims and alleged damages and are therefore directly relevant to the subject matter of this litigation." (Motion, p. 5:6-7.) The Court concurs that without Plaintiff's deposition and the accompanying documents, Defendant would face a disadvantage and be unable to conduct a comprehensive evaluation of the case.

In light of these considerations, the Court GRANTS Defendant's motion to compel deposition. Plaintiff shall appear for her deposition and produce the requested documents by October 13, 2026.

Request For Monetary Sanctions

Defendant requests \$742.50 in sanctions to cover attorney's fees and costs incurred in the filing of this motion. (Motion, pp. 5:12-6:10.) This request is made pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2025.450. (Motion, p. 5:13-19.)

The request is supported by a declaration from Defendant's counsel, J. Adam Laufer. In this declaration, Laufer states that their hourly rate is \$195.00 and that they dedicated 2.5 hours to drafting the motion. (Laufer Decl., ¶ 19.) Additionally, Laufer anticipates spending an estimated 1.0 hour attending the hearing concerning this motion. (Laufer Decl., ¶ 19.) Defendant also incurred \$60.00 in filing fees. (Laufer Decl., ¶ 19.)

Considering the Court's decision to grant this motion and that the imposition of sanctions is warranted due to Plaintiff's ongoing failures to attend her deposition, the Court GRANTS Defendant's request for sanctions against Plaintiff. The Court finds the requested amount to be appropriate.

ORDERS

1) Plaintiff Walgreen Co.'s Motion for an Order Compelling Plaintiff Nichell Morgan to Complete Her Deposition and Produce Documents is GRANTED.

2) Plaintiff

Nichell Morgan shall appear for her deposition and produce the requested documents by October 13, 2026.

3) Plaintiff

Walgreen Co.'s Request for Monetary Sanctions is GRANTED.

4) Plaintiff

shall pay Defendant's counsel \$742.50 by October 13, 2026.

5) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 15, 2026

Tamara

Hall

Judge

of the Superior Court